



Bill Number: H.B. 2104

Mesnard Floor Amendment

Reference to: FINANCE Committee amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Reduces, from four years to three years, the period during which a county assessor is prohibited from conducting an on-site inspection or reclassifying agricultural property after a property owner prevails in a property tax appeal, unless there is a change in use, a change in ownership, a property split or a taxable improvement.
2. Makes conforming changes.

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2104
(Reference to FINANCE Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 42-12155, Arizona Revised Statutes, is amended
3 to read:

4 42-12155. Notice of approval or disapproval; appeal

5 A. The county assessor shall notify the property owner whether the
6 assessor has approved or disapproved the agricultural classification of
7 the property on or before the date on which the assessor next mails the
8 owner the notice of valuation for the property.

9 B. If the assessor disapproved the agricultural classification, the
10 assessor shall notify the owner of the reason for disapproval within one
11 hundred twenty days of the application.

12 C. The owner may appeal the decision of the assessor as prescribed
13 by chapter 16, article 2, 5 or 6 of this title.

14 D. IF THE OWNER PREVAILS IN AN APPEAL UNDER CHAPTER 16, ARTICLE 5
15 OF THIS TITLE, THE COUNTY ASSESSOR MAY NOT RECLASSIFY AGRICULTURAL
16 PROPERTY OR CONDUCT AN ON-SITE INSPECTION PURSUANT TO SECTION 42-12158 FOR

1 ~~{{FOUR}}~~ {{THREE}} YEARS AFTER {{THE YEAR IN WHICH}} THE APPEAL DECISION
2 IS RENDERED UNLESS ONE OF THE FOLLOWING OCCURS:

3 1. THE PROPERTY OWNER FILES A CHANGE IN THE USE NOTICE PURSUANT TO
4 SECTION 42-12156, SUBSECTION A.

5 2. A SPLIT OF THE PROPERTY.

6 3. A CHANGE IN OWNERSHIP OR LEASE OF THE PROPERTY.

7 4. A TAXABLE IMPROVEMENT IS MADE TO THE PROPERTY.

8 [E. DURING THE ~~{{FOUR-YEAR}}~~ {{THREE-YEAR}} PERIOD PRESCRIBED BY
9 SUBSECTION D OF THIS SECTION, IF THE COUNTY ASSESSOR CLASSIFIES A
10 PREVIOUSLY UNREPORTED TAXABLE IMPROVEMENT AS AGRICULTURAL PROPERTY, THE
11 COUNTY ASSESSOR MAY ASSESS THE APPLICABLE PROPERTY TAX ON THE IMPROVEMENT
12 FOR THE CURRENT TAX YEAR AND ANY PRIOR TAX YEAR IN WHICH THE IMPROVEMENT
13 EXISTED.]

14 Enroll and engross to conform

15 Amend title to conform

J.D. MESNARD

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